

Shri Niwas Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 August 2021 · Writ-C No. 18410 of 2021 · **Writ disposed; assessing officer directed to decide pending 6.8 objection; coercive recovery stayed two months.**

HEADNOTE

On a theft-of-electricity assessment, the consumer alleged that the 3 April 2021 final assessment was first received on 1 July 2021, that an objection under clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005 filed on 5 July 2021 was still pending, and that recoveries were being pressed meanwhile. The Court, without deciding the assessment, disposed of the writ by directing the assessing officer to hear and decide the objection by a reasoned speaking order in accordance with law, staying coercive measures for two months or until that disposal, whichever was earlier.

FACTUAL SUMMARY

The petitioner, facing an allegation of theft of electricity, challenged a final assessment order dated 3 April 2021. He alleged that no notice had been issued on the provisional assessment and that recoveries were being pressed contrary to the U.P. Electricity Supply Code, 2005. He first received the assessment on 1 July 2021 and filed an objection four days later, on 5 July 2021, before the assessing officer; that objection remained pending. Relying on clause 6.8(b)(i), he contended that no demand could be raised until the objection was disposed of.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

pending objection to theft assessment; stay of coercive recovery

HOLDING

Where a consumer facing a theft assessment first received the final assessment months later and had a pending objection before the assessing officer, the Court treated the contention that clause 6.8(b)(i) barred demand until disposal of that objection as having prima facie force, but did not quash the assessment. It disposed of the writ by directing a fresh objection to be filed with the order, a hearing date to be fixed, and a reasoned speaking order in accordance with law, with coercive measures stayed for two months or until disposal, whichever earlier, and further recovery to abide that decision. ¶ 4-7

FLAG Counsel cited 6.8(b)(i) as the pending-objection bar; the petition also uses provisional/final-assessment language. The Court did not extract or verify the clause text.

PRINCIPLE TAGS

pending-objection-to-theft-assessment-6.8 A pending clause 6.8 objection to a theft assessment was treated as sufficient, at the prima facie stage, to stay coercive recovery and to remit the objection to the assessing officer for a reasoned decision in accordance with law, without a merits quash of the bill. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 3 APRIL 2021 THEFT ASSESSMENT AND ALLEGED WANT OF NOTICE ON THE PROVISIONAL ASSESSMENT

Left to the assessing officer on the pending objection, to be decided by a reasoned speaking order in accordance with law. ¶ 6-7